

Raghavendra Pratap Singh v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench, Court No. 21 · 15 February 2023 · Writ-C No. 5250 of 2023 · **Communication quashed; objection to be decided under Supply Code.**

HEADNOTE

A communication that treats a provisional assessment as final only because no objection is shown on the file is not a sustainable final assessment. Even where no objection is filed, the Assessing Officer must apply his mind and record a finding on theft of electricity or unauthorized extraction. The communication dated 31.8.2022 was quashed, and respondent no. 3 was directed to treat the objection dated 13.7.2022 as an objection to the provisional assessment notice dated 3.6.2022 and decide it under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

The petitioner, Raghavendra Pratap Singh, challenged a communication dated 31 August 2022 that the electricity department described as a final assessment in an alleged theft case. The communication stated that he had filed no objection to the provisional assessment notice dated 3 June 2022 and that the notice was therefore final and conclusive. He pointed to an objection dated 13 July 2022 carrying the stamp of the Executive Engineer, Electricity Distribution Division-IIInd. The department contended that the objection was filed beyond time.

REUSABLE CONSTRUCTIONS

1. Before a provisional assessment for theft or unauthorized extraction can be treated as final, the Assessing Officer must apply his mind and record a finding, even where the consumer has filed no objection. ¶ 1-2
2. Casual finalization of a provisional assessment, without a reasoned finding on theft or unauthorized use, cannot be sustained under the procedure in the Electricity Supply Code, 2005. ¶ 1-2

HOLDING-UNITS

HOLDING-UNIT · UP-2005::provisional-assessment

Duty to apply mind before treating a provisional assessment as final

HOLDING

Even where no objection is filed, the Assessing Officer must apply his mind and record a finding on theft of electricity or use of unauthorized means before a provisional assessment can be treated as final. The casual finalization here cannot be sustained. The communication dated 31.8.2022 is quashed. Respondent no. 3 shall treat the objection dated 13.7.2022 as an objection to the provisional assessment notice dated 3.6.2022 and decide it strictly in accordance with the procedure under the Electricity Supply Code, 2005. ¶ 1-2

FLAG The order invokes the Electricity Supply Code, 2005 assessment procedure without numbering a clause.

PRINCIPLE TAGS

assessing-officer-must-apply-mind-before-finalizing-provisional-assessment A provisional assessment cannot be treated as final merely for want of an objection. The Assessing Officer must apply his mind and record a finding on theft or unauthorized extraction, and an objection on the record must be decided under the Supply Code procedure. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER COMMITTED THEFT OR USED UNAUTHORIZED MEANS, AND THE QUANTUM OF ANY ASSESSMENT

Left to respondent no. 3 on the objection dated 13.7.2022. ¶ 1-2

NOT DECIDED — WHETHER THE OBJECTION DATED 13.7.2022 WAS WITHIN THE PRESCRIBED TIME

The department said it was late. The Court directed that it be treated as an objection and decided, without a finding on limitation. ¶ 1-2

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.